

PASSED

CHICKASAW TRIBAL LEGISLATURE

**Permanent Resolution Number 17-016
Authorization for Expenditure of Funds
Prescription Drugs for Citizens 60 years of Age or Older**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Nation operates the Chickasaw Nation Health System as a benefit for its qualified citizens, and

WHEREAS, the Chickasaw Nation wishes to provide additional pharmaceutical services to those citizens over sixty (60) years of age, who are eligible for services through the Chickasaw Nation Health System as defined in 42CFR 36.12 (a) and (b), and who reside within the designated and geographical areas which were published "as" a notice within the *Federal Register*.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes the expenditure of non-trust funds in the amount of \$150,000 for the payment and/or reimbursement of pharmaceutical services for Chickasaw Nation citizens over the age of 60 years.

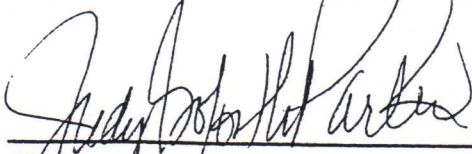
BE IT FURTHER RESOLVED, that the Executive Department of the Chickasaw Nation administer this program in accordance with the following provisions:

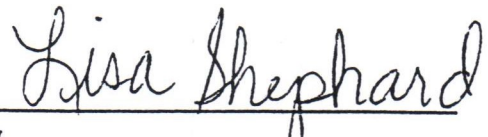
- A. Procedural and administrative regulations will be developed which provide the program's services to those who are citizens of the Chickasaw Nation over the age of 60 years and who receive health care services through the Chickasaw Nation Health System.
- B. In further fiscal years, the same amount of funds for the program shall be budgeted in accordance with the normal procedures for doing such.
- C. Reimbursement for cost or cost of prescription medicines shall be limited to actual cost and shall insofar as possible, be limited to generic drugs.
- D. A prescribed pharmaceutical considered for reimbursement or purchase under this program shall be one which is not available from the Chickasaw Nation Health System.

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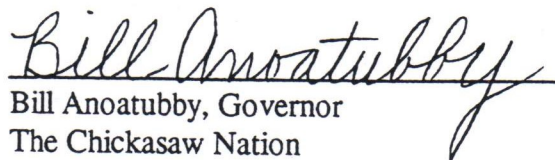
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Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on April 21, 2000, by a vote of 12 ayes, 0 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature

Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: APR 21 2000

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Explanation: Authorizes the expenditure of non-trust funds in the amount of \$150,000 for the payment and/or reimbursement of pharmaceutical services for Chickasaw Nation citizens over the age of 60 years.

Requested by: Wanda Blackwood Scott, Legislator
Pickens District

Presented by: Lisa Johnson-Billy, Chairman
Education/Health Care Committee